

# 4 The High Court and Australia's international agreements

## 4.1 Overview

Numerous **videos** and **interactivities** are embedded just where you need them, at the point of learning, in your learnON title at [www.jacplus.com.au](http://www.jacplus.com.au). They will help you to learn the content and concepts covered in this topic.

**Do we really need laws, high courts and treaties? Can't everyone just get along without them?**

### 4.1.1 Introduction

As citizens we are all subject to the rules and laws set by society — by the organisations and groups we associate with and by the governments we elect. When governments create laws, they also create a mechanism for dealing with situations where an individual, group or organisation breaches one of these laws. The mechanism used is our system of courts. Courts deal with different types of disputes depending upon the jurisdiction they are provided with by parliament. The most serious disputes are dealt with by the highest court

in our legal system — the High Court of Australia. The High Court of Australia is unique. It is the only court in Australia established and specifically mentioned in our Constitution, and it is also the only court with a set number of justices who sit on the court at any one time. We are also a part of the global community, and therefore need laws that set standards of acceptable behaviour for nations and their citizens when dealing with issues that cross borders or issues of concern to society in general. In the seven decades since the end of World War II there has not been another world war, but that does not mean the world has been peaceful. Conflicts of varying size and longevity have been fought across the world almost since the end of that war. These conflicts often stem from religious, ethnic or historical disputes and sometimes cross borders. Whatever the cause, these conflicts have left us with a less than peaceful world. While many of these conflicts are internal disputes between ethnic groups of a country or region, they can spill over into other areas and affect other nations and people, many of them innocents. An example was the internal conflict in the Ukraine in 2014 — on 18 July 2014 the world was brought into that conflict when Air Malaysia flight MH17, flying from Amsterdam to Kuala Lumpur, was shot down.

**FIGURE 1** The High Court of Australia building is located in Canberra but the justices travel to capital cities around the country settling disputes.



#### Resources



##### eWorkbook

Customisable worksheets for this topic (ewbk-6033)



##### Video eLesson

Living in a cohesive society (eles-2378)

## 4.2 Resolving disputes between state and federal governments

### LEARNING INTENTION

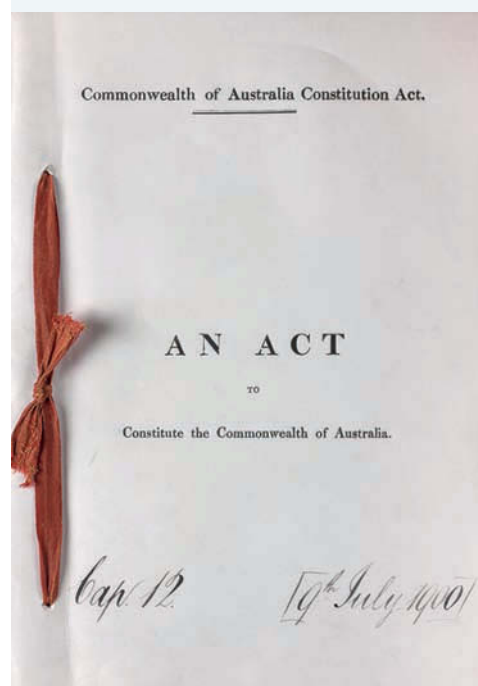
By the end of this subtopic you will be able to explain how the Australian court system allows for the resolution of disputes between state and federal governments.

### 4.2.1 Specific, residual and concurrent powers

A system of courts is needed to help maintain social cohesion. In Australia we have courts at a state level, but we also have a federal court system. At the top of this federal court system is the High Court of Australia. Located in Canberra, the court is presided over by seven High Court justices, who are appointed by the governor-general on the advice of the federal government. Justices are appointed for a period that expires when they turn 70; they cannot be removed from office except on the grounds of proven misbehaviour or incapacity.

When the Constitution established the Commonwealth of Australia (effective 1 January 1901), it granted the Commonwealth Parliament the power to make laws in certain areas. These are known as specific powers. They are called ‘specific’ because they are specified in sections of the Constitution. It also allowed the colonial parliaments (known as state parliaments after Federation) to retain their individual constitutions and some of their law-making powers, known as residual powers. It further provided some areas of law making where both the states and the federal parliaments could make laws, referred to as concurrent powers. Having concurrent powers made it likely that some conflict would develop between laws made by the Commonwealth and laws made by the states. In these circumstances it is the role of the High Court to settle such disputes.

**FIGURE 1** *The Commonwealth of Australia Constitution Act 1900 establishes the law-making powers of the federal and state parliaments.*



### 4.2.2 Concurrent powers

Section 51 of our Constitution identifies 40 areas where the Commonwealth (or federal) Parliament ‘shall, subject to this Constitution, have power to make laws for the peace, order, and good government of the Commonwealth’. As noted earlier, these powers are referred to as specific powers. They are also referred to as ‘concurrent’, which means both the state and the federal parliaments are free to make laws in these areas. These 40 powers include the power to make laws in the areas of taxation, marriage, naturalisation and aliens, external affairs and acquiring property on just terms.

The framers of the Constitution were aware that, by creating these concurrent powers, there was potential for conflict to arise between a law made by a state parliament and a law made by the federal parliament. To that end, the framers put in place a mechanism for resolving such a conflict — section 109.

Section 109 of the Constitution states that '[w]hen a law of a State is inconsistent with a law of the Commonwealth, the latter shall prevail, and the former shall, to the extent of the inconsistency, be invalid'. A problem arises when the state doesn't believe that an inconsistency exists or believes that the Commonwealth didn't have the power to create a law in this area. It is at this point that the High Court is often called upon to resolve the dispute.

The original version of the Constitution included only 39 specific powers and they were referred to as the '39 heads of power'. An additional power was added after the 1946 referendum.

**FIGURE 2** The popular Australian film *The Castle* involved a family fighting a large company who wanted the government to compulsorily acquire their house. Section 51 of the Constitution was mentioned in the film.



### 4.2.3 Resolving conflicts between state and federal laws

The framers of the Constitution recognised that the members of the state governments would be more familiar with their own citizens and circumstances, and so the state governments were left with the power to make laws in certain areas. The framers also recognised that there were certain areas where it would be in the national interest for citizens to recognise only one law.

Discrepancies exist between states and territories in certain areas of law; for example, each state and territory has its own laws about learner drivers' permits and probationary licenses. Study **FIGURE 3** to discover the different laws that exist in each state and territory in relation to obtaining a learner's permit or probationary license. In which state or territory does it take the least amount of time to obtain a probationary license?

One area where laws have conflicted in recent years is marriage. In 1961 the Commonwealth Parliament passed the *Marriage Act 1961* (Cwlth). This act of parliament codified the law to explicitly state that marriage means:

the union of a man and a woman to the exclusion of all others, voluntarily entered into for life.

In 2004 the Commonwealth Parliament passed the *Marriage Amendment Act 2004* (Cwlth) that further extended the existing law to define marriage as:

a union of a man and a woman; and clarify that same-sex marriages entered into under the law of another country will not be recognised in Australia.

In 2013 the government of the Australian Capital Territory passed a new law, the *Marriage Equality (Same Sex) Act 2013* (ACT), which allowed for same-sex marriage in the ACT. After it was proclaimed, a challenge was raised in the High Court in December 2013 in the case of *Commonwealth v. Australian Capital Territory* 2013 HCA 55.

**FIGURE 3** Learner permit and probationary licence laws around Australia

**B Northern Territory**

A learner's permit can be obtained at the age of 16 after passing a road rules test and an eyesight test. Learner drivers are allowed to drive at a maximum speed of 80 kilometres per hour, and can apply for their probationary licence after holding a learner's permit for at least 6 months.

**C Queensland**

A learner's permit can be obtained at the age of 16 after passing a written road rules test. A driver must complete at least 100 hours of driving, including 10 hours of night driving, and have held their learner's permit for at least 12 months before applying for their probationary licence.

**D New South Wales**

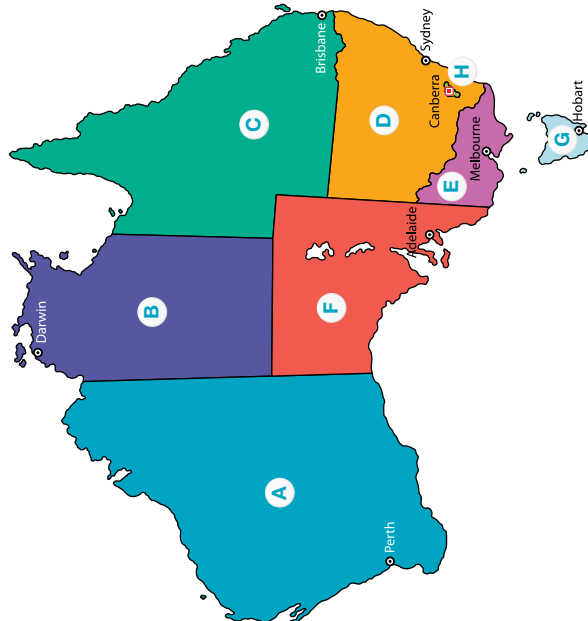
A learner's permit can be obtained at the age of 16 after completing a computerised road rules test and an eyesight test. Learner drivers need to do 120 hours of driving, including 20 hours of night driving, and can drive at a maximum speed of 90 kilometres per hour. Learner drivers can apply for their probationary licence after holding a learner's permit for 12 months and completing their required driving hours.

**A Western Australia**

A learner's permit can be obtained at the age of 16 after passing a theory test and an eyesight test. The learner must have at least 50 hours of driving practice and hold their learner's permit for their probationary licence.

**F South Australia**

A learner's permit can be obtained at age 16 after completing a theory test. Learner drivers can drive at the normal speed limit and must complete at least 75 hours of driving practice. A learner driver must hold a learner's permit for 12 months before applying for their probationary licence.



**H Australian Capital Territory**

A learner's permit can be obtained at the age of 15 years and 9 months after completing a road safety program called 'Road Ready' and passing a computerised road rules test. In order to apply for a probationary licence, a driver must be at least 17 and have held a learner's permit for at least 6 months.

**E Victoria**

A learner's permit can be obtained at age 16 after passing a computerised knowledge test and an eyesight test. Learner drivers can drive at the normal speed limit and must complete at least 120 hours of driving practice. A learner driver must have had a learner's permit for 2 years before applying for their probationary licence.

**G Tasmania**

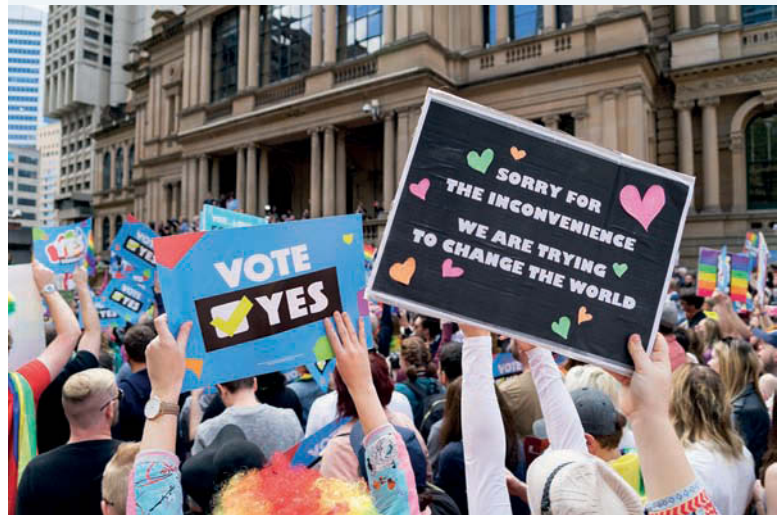
A learner's permit can be obtained at age 16 after passing a driver knowledge test. Learner drivers are required to drive at a lower speed than is posted when speed limits are over 90 kilometres per hour. After 3 months of holding an L1 permit, a learner driver sits a driving assessment to get an L2 licence. After a further 9 months and at least 50 hours of driving experience the learner can apply for their probationary licence.



The High Court was asked to decide whether section 51(xxi) and section 51(xxii) of the Constitution, which relate to marriage and divorce, allowed the ACT government to pass a law that was contrary to the federal law identifying marriage as a union between a man and a woman. On 12 December 2013 the High Court ruled that the ACT law legalising same-sex marriage was inconsistent with the federal law passed under section 51(xxi) of the Constitution. Hence, the ACT law was deemed to be invalid, and it was subsequently repealed. The High Court was able to resolve a conflict between two laws on the same topic and has therefore provided for a consistent law in this area.

After this High Court decision, debate continued in Australia. The growing level of support for same-sex marriage resulted in a postal survey, to gauge the level of support for a change in the law. The Australian Marriage Law Postal Survey, which took place between September and November 2017, was conducted by the Australian Bureau of Statistics through a postal survey rather than through ballot boxes at polling booths. Over 79 per cent of eligible voters returned the postal survey form (participation was not compulsory as it normally is in Australian elections). Nearly 62 per cent of voters supported a change in the law, so the federal government then passed a law legalising same-sex marriage, which came into effect in December 2017.

**FIGURE 4** Australians took to the streets in large numbers to show their support for legalising same-sex marriage.



## 4.2.4 Influencing state governments

The High Court not only resolves disputes over Commonwealth and state laws; it is also asked to review decisions made in state courts. As part of its jurisdiction, the High Court has the ability to hear appeals from the Supreme Courts of each state and territory, and to comment on legislation passed by the states. In making its judgements the court, and the justices sitting on a particular case, will offer comments on the validity and suitability of the laws in question. The state parliaments often act on these comments.

The case of *Trigwell v. State Government Insurance Commission* (1979) is an example of such a case. A woman was driving along a road at night when she swerved to avoid a sheep that had strayed onto the road. In doing so, she crossed onto the other side of the road and hit an oncoming car. The woman was killed and the people in the other vehicle were injured. The injured parties sued the farmer for negligence, stating that the farmer was at fault for not maintaining the fence through which the sheep escaped. The High Court was unable to find the farmer liable as the court was bound by a decision made in the House of Lords in England that still applied to Australian courts. In making their decision, the justices noted that the parliaments of the various states had known of this **precedent** for some time but had not acted. Following this decision, many state governments passed legislation to amend the Wrongs Act so this decision could not occur again. Farmers would henceforth be liable for their animals escaping and causing harm or damage.

**precedent** an action or decision on which later actions or decisions might be based; a law made by a superior court that must be applied by lower courts in future cases with the same or similar facts

**FIGURE 5** Animals straying onto a road can cause a hazard for other road users — sometimes leading to accidents, as occurred in the Trigwell case.



## 4.2 ACTIVITY

The same-sex marriage debate is considered to be finished as the law has now been changed. Society has evolved sufficiently to accept same-sex marriage. The challenge for society is to remedy the next 'big' social issue.

In small groups, discuss and identify what you consider to be the next big social issue. Research what the issue is about and what the pros and cons are of changing the law in this area. Prepare a speech, poster or slide presentation to present your group's findings and views to the class.

Some possibilities might be:

- legalising some or all drugs
- voluntary euthanasia.

**General capability: Ethical understanding**

## 4.2 EXERCISE

To answer questions online and to receive **immediate feedback** and **sample responses** for every question, go to your learnON title at [www.jacplus.com.au](http://www.jacplus.com.au).

### Learning pathways

#### LEVEL 1

Questions  
1, 3, 4, 6

#### LEVEL 2

Questions  
2, 7, 8

#### LEVEL 3

Questions  
5, 9, 10

## Check your understanding

1. Where is the High Court located?
2. Which sections of the Constitution establish the High Court of Australia and its jurisdiction?
3. How many justices sit on the High Court at any one time?
4. At what age do High Court justices retire?
5. Explain the difference between specific, residual and concurrent powers.

### Apply your understanding

6. Why could concurrent powers lead to conflict?
7. Analyse why it is better in some instances for Australia to have one law for the whole country on a given issue.
8. Analyse why the High Court is the appropriate venue to resolve disputes between two or more states.
9. The High Court hears appeals from other courts. Analyse why the High Court should be able to do this.
10. Some areas are not mentioned in the Constitution, such as the environment or euthanasia. Describe the role the High Court could play in disputes in these areas.

For sample responses to every question, go to [www.jacplus.com.au](http://www.jacplus.com.au).

## 4.3 Interpreting the Constitution

### LEARNING INTENTION

By the end of this subtopic you will be able to explain why the Australian Constitution needs to be interpreted, and describe how this occurs.

### 4.3.1 The power to interpret the Constitution

The Commonwealth of Australia Constitution was passed by the British Parliament in 1900 after ten years of negotiations and drafting by the premiers of the six colonies and a number of constitutional conventions. This process served to develop a constitution that served the interests of all the states and the citizens of Australia at that time. It also aimed to provide a framework for governing that would serve Australia into the future by including in the Constitution provisions to take future changes in society into account. Of course, the framers could not envisage all possible future changes such as technology (see **FIGURE 1**). By establishing the High Court, they provided a means for interpreting the Constitution that allows the document to take into account future circumstances, thereby bringing the law-making powers into the twenty-first century and beyond.

**FIGURE 1** When the Constitution was drafted in the late 1890s, its creators could not anticipate the changes brought about by technology.



The High Court obtains its jurisdiction from sections 75 and 76 of the Constitution (see **FIGURE 2**). Effectively it has the power to hear and determine ‘all matters’ that are listed below, such as matters arising under any treaty and matters in which the Commonwealth is a party. Since its first case in 1903, the High Court has played a significant role in interpreting the words and phrases of the Constitution to determine whether a law or a decision is valid.

The Constitution contains clear rules about the law-making powers of both the state and Commonwealth parliaments. However, as noted above, there are still occasions when conflicts over law-making power arise between the Commonwealth and the state parliaments. It is also possible for individuals to challenge whether or not a particular law made by the Commonwealth is constitutional.

**FIGURE 2** Sections 75 and 76 of the Constitution give the High Court its jurisdiction to hear cases and interpret the Constitution.

**Section 75 of the Constitution gives the High Court jurisdiction to hear cases**

In all matters:

- i. arising under any treaty
  - ii. affecting consuls or other representatives of other countries
  - iii. in which the Commonwealth, or a person suing or being sued on behalf of the Commonwealth, is a party
  - iv. between states, or between residents of different states, or between a state and a resident of another state
  - v. in which a writ of mandamus or prohibition or an injunction is sought against an officer of the Commonwealth
- the High Court shall have original jurisdiction.

**Section 76 of the Constitution further elaborates on the High Court's powers**

The parliament may make laws conferring original jurisdiction on the High Court in any matter:

- i. arising under this Constitution, or involving its interpretation
- ii. arising under any laws made by the parliament
- iii. of admiralty and maritime jurisdiction
- iv. relating to the same subject matter claimed under the laws of different states.

When called upon to interpret the Constitution, the High Court is actually making common law, as the decision made will be followed by other courts and parliaments in all future cases and legislation. This is an important function of the High Court because it provides for consistency and certainty in laws across Australia.

### 4.3.2 CASE STUDY: Interpreting the Constitution

Section 51(v) of the Constitution gives the Commonwealth the power to make laws with respect to 'postal, telegraphic, telephonic, and other like services'. At the time the Constitution was written, this section related to controlling telegraph services, telephones (still in their infancy) and the issuing of stamps for letters and packages. The 1880s saw the development of the telegraph and the telephone, and so it was foreseen that technology would continue to evolve and other means of communication might develop. It is possible that this thought encouraged the framers of the Constitution to include the phrase 'other like services' in this section, indicating that they knew some form of technology would develop but were not sure what that might be. The meaning of this phrase has been tested a number of times, with the most commonly sourced case being *R v. Brislan* (1935).

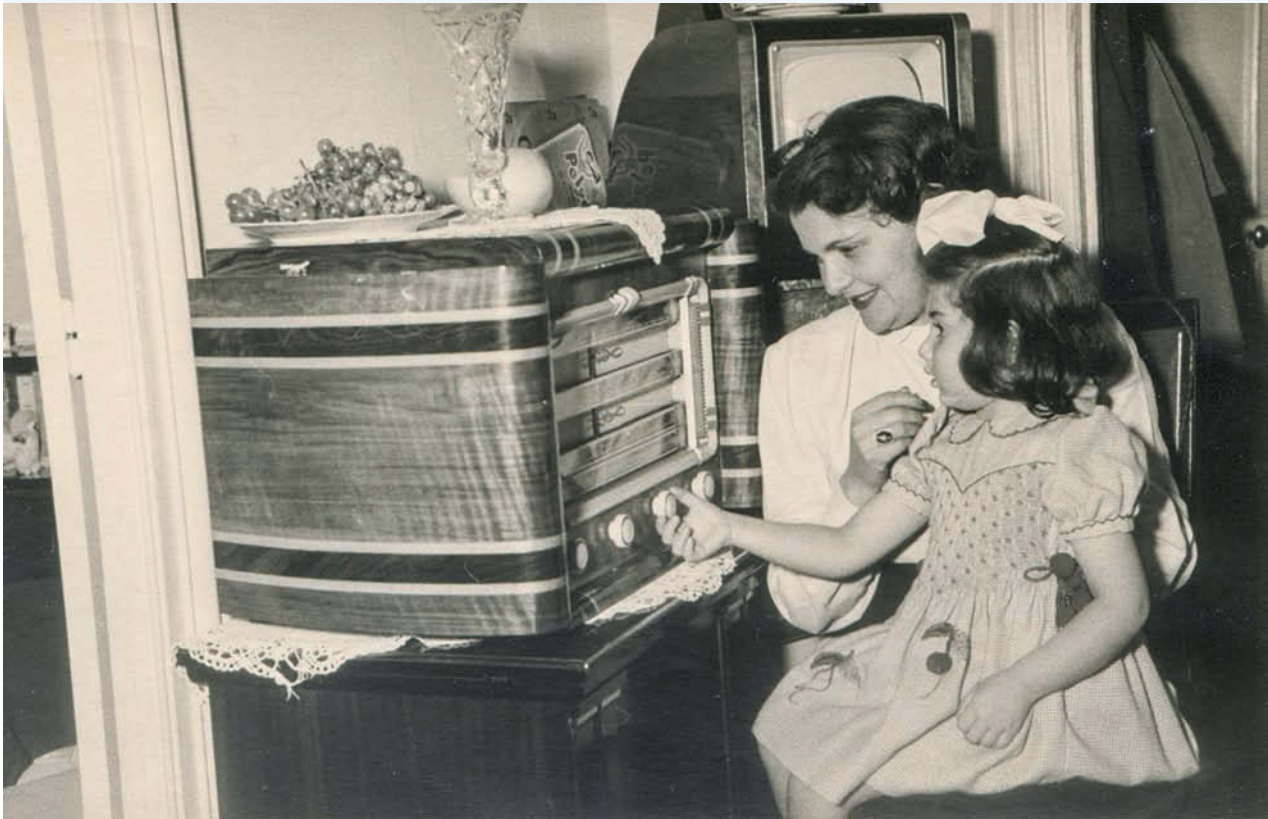
#### *R v. Brislan*

In 1905 the Commonwealth Parliament passed the *Wireless Telegraphy Act* (1905). This Act allowed the government, through the Postmaster-General, to issue licences to those who transmitted or listened to wireless broadcasts. It also allowed the government to collect fees from those who were issued with licences (see **FIGURE 4**).

In 1934 Dulcie Williams purchased and had installed an electric wireless receiving set. A week after installation she was visited by officers of the Postmaster-General's department and was charged, convicted and fined £1 in the Court of Petty Sessions for failure to have a licence. Williams challenged the law on the basis that the Commonwealth did not have the power under the Constitution to impose the requirement of the licence. Brislan, the inspector who initially charged Williams, was also a party to the case as his actions were being questioned. It was argued that the term 'other like services' did not cover wireless sets and licences to use such sets. The High Court decided that section 51(v) included the power to regulate radio broadcasting and so the 1905 legislation was valid law. In a majority decision, the justices found radio to be an item covered by section 51(v) and that the phrase 'other like services' should encompass developments in technology not anticipated at Federation and therefore not explicitly listed in the Constitution.



**FIGURE 3** When wireless sets (radios) were introduced, it was necessary for people to have a licence to own and use one.



**FIGURE 4** Section 5 of the Wireless Telegraphy Act allowed the Postmaster-General to collect licence fees from those who listened to a wireless.

BE it enacted by the King's Most Excellent Majesty, the Senate, and the House of Representatives of the Commonwealth of Australia, as follows:—

1. This Act may be cited as the *Wireless Telegraphy Act 1905*.
2. In this Act,—
  - “Australia” includes the territorial waters of the Commonwealth and any territory of the Commonwealth;
  - “Wireless telegraphy” includes all systems of transmitting and receiving telegraphic messages by means of electricity without a continuous metallic connexion between the transmitter and the receiver.
3. This Act shall not apply to ships belonging to the King's Navy.
4. The Postmaster-General shall have the exclusive privilege of establishing, erecting, maintaining, and using stations and appliances for the purpose of—
  - a. transmitting messages by wireless telegraphy within Australia, and receiving messages so transmitted, and
  - b. transmitting messages by wireless telegraphy from Australia to any place or ship outside Australia, and
  - c. receiving in Australia messages transmitted by wireless telegraphy from any place or ship outside Australia.
5. Licences to establish, erect, maintain, or use stations and appliances for the purpose of transmitting or receiving messages by means of wireless telegraphy may be granted by the Postmaster-General for such terms and on such conditions and on payment of such fees as are prescribed.

Television, fax machines and the internet all developed after the *Brislan* case was heard, and at times the High Court has had to expand upon the judgement in *R v. Brislan* to determine whether these items are covered by the Constitution. The result of the judgement in the *Brislan* case is that these words in the Constitution have been interpreted and a meaning has been given to them.

### 4.3.3 A question of rights

The Constitution not only provides for our system of government and the division of law-making powers between the states and the Commonwealth; it also provides citizens of Australia with certain **rights**. These rights are referred to as express rights because they can be clearly identified in the words of the Constitution. Through its ability to interpret the Constitution, the High Court, as the guardian of the Constitution, therefore protects our rights as well. If a person or a group feels that an act of a government infringes upon their rights, they may ask the High Court to declare the action unconstitutional or the law **ultra vires**.

The High Court may also determine that other rights exist within the words of the Constitution even though those words do not expressly provide that right. The High Court can still **infer** that a right exists and that the words imply that right. There are a number of cases that involve the determination of implied rights by the High Court. All but one of these cases revolve around the implied right to freedom of political communication.

#### *Theophanous v. Herald and Weekly Times (1994)*

Dr Andrew Theophanous was a member of the Australian Labor Party (ALP) who had been elected to the House of Representatives in 1980. In 1992, while he was still a member of parliament, the *Sunday Herald Sun* published a letter written by Bruce Ruxton, the president of the Victorian branch of the Returned and Services League (RSL). This letter raised some concerns about the qualities of Dr Theophanous as a politician. Theophanous sued Ruxton and the Herald and Weekly Times (publishers of the *Sunday Herald Sun*) for **defamation**.

In resolving this dispute the High Court was required to look at the words of the Constitution, in particular sections 7 and 24, to determine if they allowed for freedom of political speech. The sections themselves state that members of the Senate (section 7) and the House of Representatives (section 24) are to be chosen by the people. The High Court was asked to examine if the requirement of being elected by the people gave the people the right to comment on political matters. The High Court ruled that the Constitution did protect freedom of political speech. Therefore, the fact that Ruxton was expressing a view about a political matter provided him with a defence so that he could not be sued for defamation.

**rights** those things that a person is entitled to by virtue of being a member of society

**ultra vires** acting beyond the power of the law maker. It usually refers to situations where parliaments pass a law that is outside their area of authority.

**infer** to form a conclusion based on evidence

**defamation** a civil wrong involving a written or verbal communication that lowers a person's reputation in the community

#### 4.3 ACTIVITY

When the Constitution was written, the law makers at the time could not predict the potential future changes to society that would necessitate the passing of new laws. One of the roles of the High Court is to interpret the Constitution and apply it to contemporary society.

- Do some research to find a recent decision made by the High Court that required a new interpretation of an old law. Briefly outline the issue and the change made to the law.
- Can you predict any future changes to our society that might require a different application of the law?

**General capability: Critical and creative thinking**

#### 4.3 EXERCISE

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##### Learning pathways

###### LEVEL 1

Questions  
1, 3, 4, 7

###### LEVEL 2

Questions  
2, 6, 8

###### LEVEL 3

Questions  
5, 9, 10

### Check your understanding

1. Why was an Australian Constitution needed?
2. Why was the High Court needed?
3. What sections of the Constitution give the High Court the power to interpret the Constitution?
4. Why do you think the Australian Constitution needs to be interpreted on occasions?
5. Looking at the *Brislan* case, what changes have occurred in telecommunications to which the decision in *Brislan* can be applied today?

### Apply your understanding

6. What impact does an interpretation of the Constitution have?
7. What is meant by an 'implied right'?
8. Most laws are made by Parliament, whose members are elected by us. Discuss whether you think judges in the High Court should be allowed to make laws through their decisions.
9. Examine the *Theophanous* case. Do you agree that we should have this right? Justify your answer.
10. Do you believe that a document as important as the Constitution should include vague terms such as 'other like services'? Justify your answer.

For sample responses to every question, go to [www.jacplus.com.au](http://www.jacplus.com.au).

## 4.4 International law

### LEARNING INTENTION

By the end of this subtopic you will be able to explain how international laws seek to set standards of behaviour and maintain cohesiveness throughout the world, and describe the means by which international law is enforced.

### 4.4.1 Standards of acceptable behaviour

As citizens, we are members of a number of communities. We are members of our local community (the suburb or town we live in), the state we live in and the country we live in. As members of these communities, we are expected to abide by the laws that apply to those communities, such as parking laws at our local shopping centres, speed limits when driving on the roads and laws governing taxation when completing our tax return for the Australian government. We are also a part of the global community. Therefore, shouldn't we abide by the laws created for all of us to live in a peaceful world, devoid of international conflict? International law is concerned with setting standards of acceptable behaviour for nations and their citizens when dealing with issues that cross borders or issues of concern to society in general.

### 4.4.2 What is international law?

International law consists of the rules and principles governing the relations and dealings of nations with each other, relations between states and individuals, and relations between international organisations. There are generally considered to be two types of international law:

- *public international law*, which concerns itself only with questions of rights between several nations, or between nations and the citizens or subjects of other nations
- *private international law*, which deals with controversies between private persons arising out of situations involving more than one nation.

International law has developed from a number of sources, but it is primarily derived from treaties and conventions between countries. A treaty is a form of contract between two parties (two countries or two international organisations from different countries). Perhaps the most famous treaty is the Treaty of Versailles, signed at the end of World War I. It details Germany's culpability for starting the war and its responsibility for

making **reparations** to the countries it waged war upon. The Treaty of Versailles required Germany to pay the equivalent of US\$33 billion to the Allied countries (worth about US\$400 billion today).

Other sources of international law include the Charter of the United Nations, international customs and the general principles of law that apply in the majority of countries.

The Charter of the United Nations provides a number of chapters that allow international laws to be established:

- Chapter I sets forth the purposes of the United Nations, including the important provisions for the maintenance of international peace and security.
- Chapters III–XV, the bulk of the document, describe the organs and institutions of the UN and their respective powers.
- Chapters XVI–XVII describe arrangements for integrating the UN Charter with established international law.

The following chapters deal with the enforcement powers of UN bodies:

- Chapter VI describes the Security Council's power to investigate and mediate disputes.
- Chapter VII describes the Security Council's power to authorise economic, diplomatic and military sanctions — as well as the use of military force — to resolve disputes.
- Chapter VIII makes it possible for regional arrangements to maintain peace and security within their own region.
- Chapters XIV and XV establish the powers of the International Court of Justice and the United Nations Secretariat, respectively.

One key section of the Charter allows the creation of the International Court of Justice to hear and rule on international disputes.

The United Nations (see FIGURE 1) is responsible for drafting and ratifying international conventions and declarations that seek to establish guidelines for behaviour and the establishment of rights for citizens of the world. These conventions and declarations are drafted by the General Assembly of the United Nations or one of the six main committees of the UN. These committees draft resolutions, conventions and declarations, which are then ratified by a vote of the General Assembly's 193 members.

**reparations** payment of money or materials by a nation defeated in war, as compensation for damage caused

**FIGURE 1** The United Nations is the body responsible for determining international law.





### 4.4.3 Enforcing international law

It is the role of the United Nations to both establish international laws and enforce them. The United Nations makes use of the International Court of Justice and the UN Security Council, responsible for deploying UN peacekeepers, to assist it in enforcing international law.

#### The International Court of Justice

The International Court of Justice is the primary judicial branch of the United Nations. It is based in the Peace Palace in The Hague, Netherlands. Its main functions are to settle legal disputes submitted to it by states (member countries of the United Nations) and to provide advisory opinions on legal questions submitted to it by duly authorised international branches, agencies and the UN General Assembly.

More than 176 cases have been brought before the International Court of Justice since its inception on 22 May 1947. The cases involving Australia are:

- Nuclear Tests Case (*Australia v. France*) 1974
- Certain Phosphate Lands in Nauru (*Nauru v. Australia*) 1992
- East Timor (*Portugal v. Australia*) 1995
- Whaling in the Antarctic (*New Zealand & Australia v. Japan*) 2014
- Seizure of Certain Documents and Data (*Timor-Leste v. Australia*) 2015.

Perhaps the most well-known case involved Australia and New Zealand, who brought a case to the court accusing Japan of exceeding its limits on whaling for research purposes in the Antarctic. This case was resolved in 2015 with the court ruling that Japan's whaling program was not in accordance with international law.

**FIGURE 2** The International Court of Justice, The Hague



#### on Resources

- 🔗 **Weblinks** Whaling
- UN peacekeeping missions
- UN peacekeeping mission video

#### 4.4 EXERCISE

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##### Learning pathways

###### LEVEL 1

Questions  
2, 3, 4, 6

###### LEVEL 2

Questions  
1, 7, 8

###### LEVEL 3

Questions  
5, 9, 10

#### Check your understanding

1. Individual countries have laws. Why do you think we need international laws?
2. How many countries are currently in the United Nations?
3. Why was the United Nations established?

4. Where is the International Court of Justice?
5. What is meant by 'international law'?

### Apply your understanding

6. In your opinion, do we still need the United Nations?
7. Distinguish between public and private international law.
8. Explain the role of the International Court of Justice.
9. Describe how the United Nations helps achieve social cohesion in the world.
10. 'The members of the United Nations do not have to abide by decisions of the International Court of Justice.' Describe how this statement may reflect a weakness in the way the United Nations operates.

For sample responses to every question, go to [www.jacplus.com.au](http://www.jacplus.com.au).

## 4.5 Applying international treaties

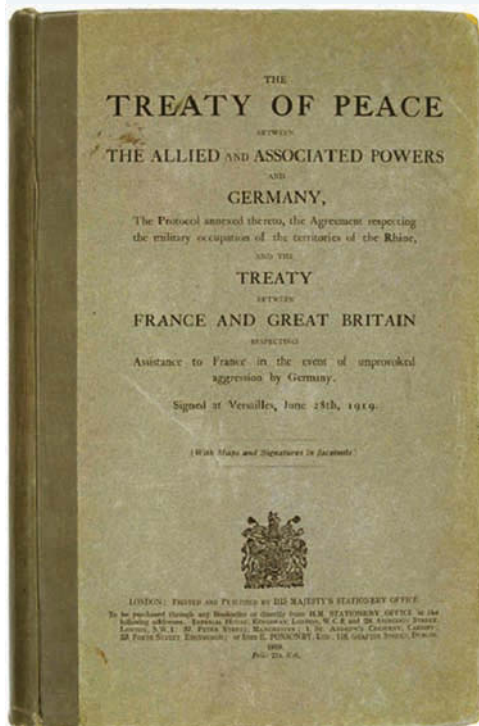
*Aboriginal and Torres Strait Islander readers are advised that this topic may contain photos of or references to people who have died.*

### LEARNING INTENTION

By the end of this subtopic you will be able to explain what an international treaty is, and describe their purpose.

### 4.5.1 Reasons for treaties

**FIGURE 1** The Treaty of Versailles.  
Treaties are signed between countries to formalise agreements.



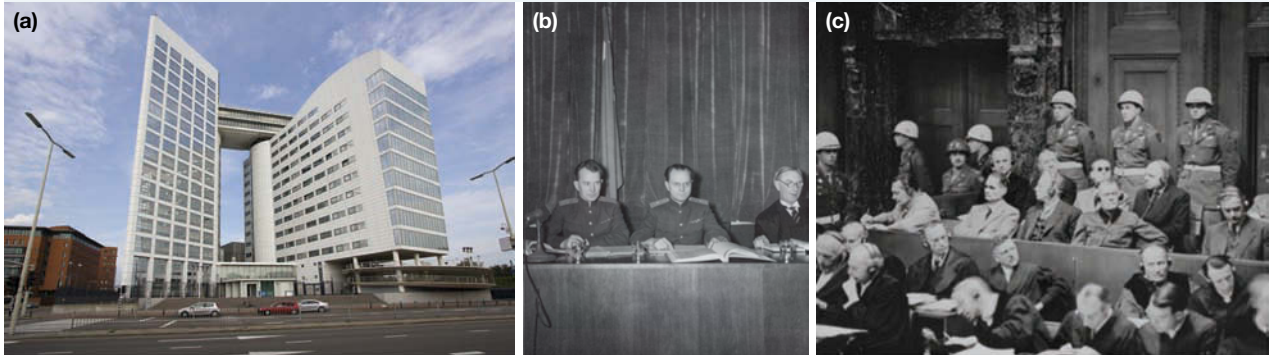
As noted in subtopic 4.3, the High Court of Australia is empowered to make decisions in relation to any disputes relating to an international **treaty**. Australia is a signatory to many international treaties, and the Australian parliament may be required to pass laws that support or confirm the application of a treaty within Australia. Treaties are signed for a number of reasons:

- A peace treaty is signed to formally end a conflict or war. In 1919, six months after the end of World War I, the Treaty of Versailles was signed, setting out the provisions for peace.
- Trade agreements are signed between two or more countries that agree to trade certain goods on certain conditions. It is common for these trade agreements to be 'free trade agreements' — that is, to have no taxes or conditions imposed on them.
- International conventions are agreements drafted by the United Nations or other world bodies and signed (or ratified) by a majority of the countries of the world. The Universal Declaration of Human Rights (discussed in topic 20) is an example.

The signing of international treaties can lead to international disputes that require international courts to resolve them. International treaties can also lead to internal or domestic disputes, and the High Court will be asked to resolve these disputes.

**treaty** an agreement between two or more sovereign states (countries) to undertake a particular course of action. It usually involves matters such as human rights, the environment or trade.

**FIGURE 2** (a) The International Criminal Court at The Hague, in the Netherlands (b) The International Military Tribunal at the Nuremberg war crimes trials in Germany after World War II, with judges from Russia (left and centre) and Britain (right) (c) Defendants listening to translations via headphones as the prosecution begins introducing documents at the international Military Tribunal on war crimes in Nuremberg.



## DISCUSS

Australia has received criticism for its treatment of asylum seekers, particularly for the practice of processing asylum seekers offshore and detaining them for lengthy periods of time. What do you believe Australia's obligations towards asylum seekers are? Do you believe that the Australian government treats asylum seekers appropriately? Give examples to support your response.

**General capability: Intercultural understanding**

## 4.5.2 The Universal Declaration of Human Rights

Following the end of World War II and the creation of the United Nations (UN) in 1945, the UN General Assembly adopted the Universal Declaration of Human Rights in 1948. Australia was one of the 48 countries to **ratify** the Declaration out of the 58 countries that made up the United Nations. Since then, nearly every country in the world has signed this document. The Declaration lists 30 rights that are afforded to all citizens of the world. These rights attempt to provide a structure and protection for the citizens of the world no matter where they live, where they travel, or what race, sex or religion they are. Despite the adoption of these rights by most countries, disputes still arise from perceived breaches of the Declaration or as a result of attempts to enforce the terms of the Declaration within a domestic environment.

In this regard Australia is no different. The High Court has been asked to rule on the application of the Declaration to events in Australia that are believed to have infringed on the rights of a citizen or a group of citizens.

### *Koowarta v. Bjelke-Petersen & Ors (1982)*

In 1974 John Koowarta, a Wik elder from the Cape York region in Queensland, collaborated with a group of fellow traditional owners with a view to purchasing an extensive tract of land being used as a cattle station. The owner of the station agreed to the sale and had contracts drawn up. As Koowarta was using funds from the Aboriginal Land Fund Commission, the intended purchase was brought to the attention of the Queensland Government. Before the sale could be completed, it was blocked by the state government.

Joh Bjelke-Petersen was the premier of Queensland. His government had an official policy that Aboriginal and Torres Strait Islander peoples should not be able to buy large areas of land, so he directed the Queensland minister of lands not to approve the sale. Koowarta made a complaint to the Human Rights and Equal Opportunity Commission on the basis that blocking the sale was discriminatory. (The Human Rights and Equal Opportunity Commission was established under the Commonwealth *Racial Discrimination Act 1975* as a result of Australia ratifying the Universal Declaration of Human Rights in 1948 and then

**ratify** to formally consent to and agree to be bound by a treaty, contract or agreement



signing the UN Convention on the Elimination of All Forms of Racial Discrimination (CERD) on 13 October 1966.) The commission upheld Koowarta's complaint, but the Queensland Government appealed to the Supreme Court of Queensland, and the case subsequently reached the High Court.

The argument put forward by Bjelke-Petersen, and the issue before the High Court, was that the Racial Discrimination Act was invalid because the Commonwealth did not have the power to pass such a law as it was not a concurrent or specific power — the Commonwealth had interfered in a state matter. He also argued that the constitutional provisions regarding external affairs did not apply because the Racial Discrimination Act only applied to Australians and so was not 'external' in nature. The Commonwealth Government and Koowarta argued that the external affairs provisions of section 51(xxix) meant the Commonwealth could pass laws that would give effect to Australia's international obligations as a signatory to the CERD.

The High Court agreed with Koowarta, and the decision to block the land sale was deemed discriminatory. In 1988 the Queensland Supreme Court was allowed to rule on the original case, and it allowed the sale to go ahead. The High Court had upheld an international treaty and its domestic application.

**FIGURE 3** Aboriginal and Torres Strait Islander peoples have had to protest to gain land rights.



## **on** Resources

 **Video eLesson** Land rights demonstration (eles-2428)



### 4.5.3 Australia's commitment to global citizenship

Treaties are designed to formalise agreements between countries. The Department of Foreign Affairs and Trade identifies 21 areas in which treaties can be categorised. These areas include:

- atmosphere and outer space
- criminal matters
- defence and security
- human rights
- international trade
- labour.

As a good global citizen, Australia adopts these treaties in good faith, intending to abide by them and to assist in bringing countries that breach these treaties to account. This can lead to Australia passing its own laws to bring these international treaties into effect in Australia. However, adoption of these treaties can cause conflict in Australia, as governments attempt to pass laws that enforce the treaties and hence dictate the direction of government policy. An example of such a scenario was Australia's signing of the World Heritage Convention in 1972. The signing of this Convention led to a High Court case, a change in government policy and an election.

### 4.5.4 *The Commonwealth v. State of Tasmania*

In 1972 the United Nations ratified the World Heritage Convention, a document drafted by UNESCO (United Nations Educational, Scientific and Cultural Organization). This document aimed to establish a process for countries to identify significant natural or cultural sites with a view to protecting them from damage, destruction or any other form of harm. Using the terms of the Convention, which is an international treaty, the Commonwealth nominated for World Heritage listing specific areas in Tasmania that the Tasmanian Government had planned to dam for the purposes of generating hydroelectricity.

The areas concerned — the Franklin and Gordon rivers — contained unique flora and fauna as well as significant First Nations places and artefacts that would be destroyed by the dam. To ensure their protection, the Commonwealth Parliament passed the *World Heritage Properties Conservation Act 1983*. This ensured the protection of much of the south-west wilderness regions of Tasmania.

The Tasmanian Government challenged the Commonwealth law on the basis that the Commonwealth didn't have the power to make laws in this area because it was an area of law-making belonging to the states. The Commonwealth argued that a section of the Constitution gave it the power to make laws under the heading 'external affairs'. It successfully claimed that 'external affairs' allowed it to sign treaties and so by default pass domestic laws that supported those international treaties. The Commonwealth case was started by the Labor government, led by Bob Hawke. He had been elected prime minister only recently, having campaigned to 'Stop the dam'.

**FIGURE 4** Protests at the Franklin River gained widespread media coverage and provoked such a public response that the Hawke government subsequently nominated the area for World Heritage listing under the terms of an international treaty.



## Further developments

Australia signed the International Covenant on Civil and Political Rights in 1972 and ratified it in 1980. This Covenant is a multilateral treaty that commits its parties to respect the civil and political rights of individuals. These include the right to life, freedom of religion, freedom of speech and freedom of assembly, as well as electoral rights and rights to due process and fair trials. Article 17 of the Covenant has been implemented by the federal *Privacy Act 1988*, and the Covenant's equality and anti-discrimination provisions are supported by the federal *Disability Discrimination Act 1992*.

One outcome of the Tasmanian Dam Case was that some laws made by the states could be declared invalid if they contradicted laws made by the Commonwealth as a result of Australia signing a treaty. The Commonwealth passed the *Human Rights (Sexual Conduct) Act 1994* with the express purpose of overturning two sections of the Tasmanian Criminal Code that outlawed certain consensual adult behaviour conducted in private.

### on Resources

 **Video eLesson** Tassie's Franklin River — 20 years on (eles-0636)

## 4.5.5 International trade

All countries trade goods and services because trading brings many benefits. These include:

- access to a wider variety of goods and services
- increased incomes as goods sold overseas bring income into the country
- higher living standards as people gain access to better quality goods and services
- falling prices from access to cheaper goods and services and increased competition between sellers
- higher employment as more goods need to be produced for export.

Consequently, many treaties signed by Australia and other countries are **trade** agreements. Such agreements establish rules and guidelines for the trade of goods and services between countries. Some trade agreements are merely contracts between countries to supply certain goods and services at certain prices. Other trade agreements are significant international agreements that affect how governments operate in the area of international trade. Most trade agreements are regulated by the World Trade Organization (WTO) framework, which replaced the General Agreement on Tariffs and Trade (GATT) on 1 January 1995. The WTO framework involves an agreement between most of the countries of the world to continue improving trade relations and reducing trade barriers.

However, not all countries trade freely. They erect trade barriers to make it difficult for foreign products to enter the country and compete with local goods. GATT and the WTO have sought to rectify this issue by encouraging countries to move towards free trade. They have done this by advocating the signing of free trade agreements between countries or regions, and the removal of trade barriers such as **tariffs**.

As a result of the free trade efforts of GATT and the WTO, Australia has reduced tariffs in a number of areas, including the manufacture of motor vehicles.

**FIGURE 5** International trade involves treaties and agreements between countries.



**trade** the activity of buying, selling or exchanging goods and services between producers and consumers and/ or countries

**tariffs** taxes imposed on imported goods and services to make them more expensive

Tariffs on imported cars have been steadily reduced since the 1980s, with the last reduction occurring in 2010 when the tax on imported cars fell from 10 per cent to 5 per cent. This reduction was part of government policy established in the 1980s to reduce protection for Australian car manufacturers. The tariff reductions have resulted in lower prices for imported cars and reduced sales for Australian-made cars. The overall outcome was the closure of the Ford, Holden and Toyota car manufacturing plants in Australia in 2017 with the loss of thousands of jobs. While this may seem to be a negative outcome, we must remember that other countries have also reduced their tariffs, allowing our goods to better compete in those countries and creating jobs in Australia.

**FIGURE 6** Tariff reductions have resulted in cheaper imported cars but also job losses and car plant closures in Australia.



### 4.5.6 ANZUS

Some of the most important treaties have arisen from armed conflict. (One of these was the Treaty of Versailles, discussed in section 4.4.2.) During World War I Australia fought with British, New Zealand and US troops on various battlefields across Europe. When World War II commenced in the Pacific, Australia was threatened — the Japanese had bombed Darwin and sent their mini-submarines into Sydney Harbour. Our strong ties with the United States led the Americans to provide aid and support during this time, and to fight with us to push back the Japanese forces.

This conflict strengthened our ties with both the United States and New Zealand, culminating in the signing in 1951 of the ANZUS (Australia, New Zealand, United States Security) agreement. This treaty bound the three nations to cooperate on defence matters in the Pacific Ocean region. Although the treaty was modified in 1984 due to New Zealand's objections to nuclear warships entering its ports, the agreement is still in effect and annual meetings are held to confirm the relationship. The treaty also allows for joint defence installations to be operated on Australian soil.

**FIGURE 7** Security treaties such as ANZUS provide Australia with military support if needed.





## 4.5.7 The International Labour Organization

Australia is a member of the International Labour Organization (ILO), an agency of the United Nations that deals with labour issues among member states. The 86th International Labour Conference in 1998 adopted the Declaration on Fundamental Principles and Rights at Work. This declaration contains four fundamental policies:

1. the right of workers to associate freely and bargain collectively
2. the end of forced and compulsory labour
3. the end of child labour
4. the end of unfair discrimination among workers.

The ILO asserts that its members have an obligation to work towards fully respecting these principles, which are embodied in relevant ILO conventions. As a signatory, Australia has adopted these policies and many of them are reflected in our labour laws.

### Resources

 **Weblink** Rights of the child

### 4.5 ACTIVITY

As a human being you have certain rights.

- a. Provide a list of the basic rights you believe you are entitled to.
- b. Use the **Rights of the child** weblink in the Resources tab to research the Convention on the Rights of the Child. Provide a summary of the rights outlined in this Convention.
- c. Prepare a table comparing the rights you identified in part (a) with the rights provided in the Convention.

**General capability: Ethical understanding**

### 4.5 EXERCISE

To answer questions online and to receive **immediate feedback** and **sample responses** for every question, go to your learnON title at [www.jacplus.com.au](http://www.jacplus.com.au).

#### Learning pathways

##### LEVEL 1

Questions  
1, 2, 3, 6

##### LEVEL 2

Questions  
4, 7, 8

##### LEVEL 3

Questions  
5, 9, 10

### Check your understanding

1. What is a treaty?
2. Give two reasons why a treaty could be signed.
3. Why do you think the High Court should be allowed to resolve disputes involving international treaties?
4. Why do you think not all countries in the world would sign the Universal Declaration of Human Rights?
5. Identify three different types of treaties.

### Apply your understanding

6. Outline three benefits of free trade.
7. What other areas do you think might be covered by the external affairs provisions of section 51(xxix) of the Constitution?



8. Explain how signing a treaty can affect the laws of Australia.
9. Choose one of the treaties mentioned in this subtopic and explain how it benefits Australian citizens.
10. 'Social cohesion can be advanced by having a bill of rights. Australia does not have its own bill of rights, instead relying on laws and the courts to provide cohesion.' Use this statement as a springboard to discuss whether or not Australia should have a bill of rights.

For sample responses to every question, go to [www.jacplus.com.au](http://www.jacplus.com.au).

## 4.6 International law and Indigenous Australians

*Aboriginal and Torres Strait Islander readers are advised that this topic may contain photos of or references to people who have died.*

### LEARNING INTENTION

By the end of this subtopic you will be able to explain Australia's obligations to Aboriginal and Torres Strait Islander peoples through international law.

### 4.6.1 Racial discrimination

As discussed in previous topics, Australia is a signatory to the Universal Declaration of Human Rights. The Declaration establishes certain rights that all citizens in all countries are entitled to. By signing the document, a country agrees to abide by the provisions of the Declaration and not engage in any conduct that infringes upon those rights.

A further declaration passed by the United Nations and ratified by Australia is the International Convention on the Elimination of All Forms of Racial Discrimination. This Convention was ratified in 1965 and came into effect in 1969. It contains 25 articles (or sections) that define racial discrimination and the various types of racial discrimination that exist in the world. Article 5 includes the following:

In compliance with the fundamental obligations laid down in article 2 of this Convention, States Parties undertake to prohibit and to eliminate racial discrimination in all its forms and to guarantee the right of everyone, without distinction as to race, colour, or national or ethnic origin, to equality before the law, notably in the enjoyment of the following rights ...

One impact this Convention (and this article in particular) has had on government policy can be seen in the passing of the Commonwealth *Racial Discrimination Act 1975*. The preamble and long title of the Act clearly outline the reasons for passing this legislation:

**Long title**

An Act relating to the Elimination of Racial and other Discrimination

**Preamble**

... it is desirable, in pursuance of all relevant powers of the Parliament, including, but not limited to, its power to make laws with respect to external affairs, with respect to the people of any race for whom it is deemed necessary to make special laws and with respect to immigration, to make the provisions contained in this Act for the prohibition of racial discrimination and certain other forms of discrimination and, in particular, to make provision for giving effect to the Convention ...

Despite these positive aims, there have been instances where the treatment of Aboriginal and Torres Strait Islander peoples has fallen short of our obligations under the Declaration and the Convention.

One particular area of conflict is land rights. Having occupied the country for at least 40 000 years before the arrival of Europeans, Aboriginal and Torres Strait Islander peoples have a valid claim to land across Australia. Weighed against this is the English-based legal system of land and property ownership imposed

here since 1788, under which both urban and rural Australians believe they have legal title to land they occupy. Finding a legal balance between these conflicting claims while ensuring fairness and justice is clearly a challenge for our legal system. It was this issue that was at the heart of a long-running legal dispute over rights and Australia's obligations: the Mabo Case (see also topic 22).

## 4.6.2 The Mabo Case

In August 1770, Captain James Cook claimed all of the east coast of what is now Australia as British territory. Under the internationally recognised law of the time, Cook could claim land on any one of the three following legal grounds:

- If the land was uninhabited, any country could claim ownership and settle the land under the principle of *terra nullius*.
- If the land was inhabited, another country could ask the leaders of the inhabitants for permission to make use of some of the land. This could involve making a land purchase or coming to some other arrangement such as a treaty, but the arrangement had to be agreeable to the existing population.
- A country already inhabited could be conquered through invasion and war, defeating the existing population in battle. International law at the time created an expectation that the conquered inhabitants still had rights that had to be respected.

Although the land was inhabited, Cook claimed it under the principle of *terra nullius*. The British did not recognise the Aboriginal and Torres Strait Islander peoples as having any legal title over the land because they had no written laws of *tenure* as existed in European countries.

In 1982 Eddie Mabo, a Meriam man of Mer Island (which was renamed by Europeans as Murray Island) in the Torres Strait, began legal action against the State of Queensland, claiming that he and his people were the legal owners of the island. Mabo was an active campaigner for Aboriginal and Torres Strait Islander peoples' rights. He discovered that, contrary to what he had believed all his life, his people did not legally own the land they always believed was theirs. Mabo was joined in this action by a number of other inhabitants of Mer Island. The action was brought largely as a test case. The Mer Islanders believed they owned the land because their people had occupied it for centuries, long before European settlement of Australia, but Queensland law appeared to designate the Torres Strait Islands as being under the ownership and control of the Queensland Government.

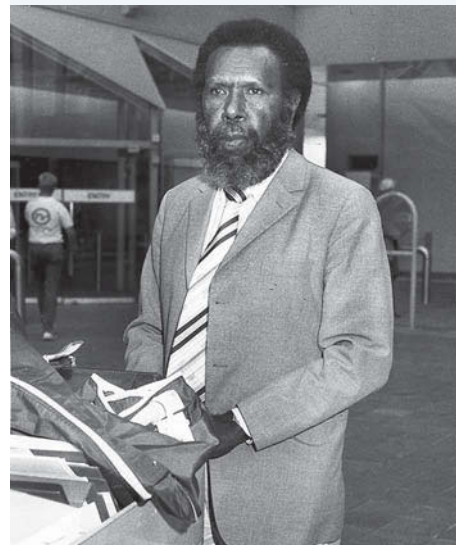
### The Mabo decision

The Full Bench of the High Court decided in favour of the Mer Islander plaintiffs and declared that '[t]he Murray Islanders of the Torres Strait are entitled, as against the whole world, to possession, occupation and enjoyment of the lands of '[t]he Murray Islands'.

**FIGURE 1** When the British arrived in Australia, they considered the land to belong to no-one.



**FIGURE 2** Eddie Mabo challenged the state of Queensland in the High Court, resulting in changes to the law concerning land rights.



**terra nullius** ('land belonging to no-one') in Australia, the legal idea that since no-one was 'using' the land when the first Europeans arrived, it could be claimed by the British Crown

**tenure** a system by which particular individuals or groups are given a legally recognised right to occupy a defined area of land

The basis for this decision rested on the following:

- The principle of *terra nullius* had been incorrectly applied. Australia had never been an empty land, and so the British were wrong to use it as the legal basis for their occupation of the land.
- In the absence of *terra nullius*, it was appropriate to apply principles relating to native title to land occupied and used by its traditional Aboriginal and Torres Strait Islander owners.
- Native title can be recognised and included in the Australian system of property law and common law.

The Meriam people could claim native title because they were able to demonstrate continuing occupation and use of their land. Their system of family ownership and land usage was significant because it could be clearly demonstrated that these had operated continuously since before white colonisation. In other parts of Australia, where Aboriginal and Torres Strait Islander peoples have been dispossessed, the issue was not so clear. In his judgement, Chief Justice Brennan indicated that: ‘there may be other areas of Australia where an Aboriginal people, maintaining their identity and their customs, are entitled to enjoy their native title’. Future claims by other Aboriginal and Torres Strait Islander groups would need to demonstrate clearly that a high level of traditional occupation and land usage would be necessary to support such a claim. Individual claims would have to be decided on a case-by-case basis.

## Native title legislation

Western Australia was the first state to respond to the Mabo Case with legislation. The state parliament passed the *Land (Titles and Traditional Usages) Act 1993*. Its aim was to extinguish the common law right of native title throughout the state and replace it with a statutory right of ‘traditional usage’, which could itself be extinguished by the government at any time. This Act was a deliberate attempt to favour mining and pastoral companies in any dispute with Aboriginal and Torres Strait Islander occupants over rights to the land.

Commonwealth governments had previously avoided entering into conflict with state governments over Aboriginal and Torres Strait Islander peoples’ land rights, but the Keating Labor government wished to find a way to support those rights. The risk that some other state governments might try to legislate to extinguish Aboriginal and Torres Strait Islander peoples’ land rights as Western Australia had done led the Commonwealth to propose its own legislation. The *Native Title Act 1993* (Cwlth) was passed in late December 1993 and came into force on 1 January 1994. This Act included the following principles:

- legislative recognition and protection for the previous common-law concept of native title
- the extinguishment of native title rights over freehold land
- no extinguishment of native title rights by any processes other than those contained in the Act
- the rights of Aboriginal and Torres Strait Islander peoples to claim native title over Crown land if they could prove a traditional and continuing attachment to that land
- procedures for claiming native title through the establishment of a Native Title Tribunal.

## Western Australia v. Commonwealth

In the case *Western Australia v. Commonwealth* 1995 HCA 47, the Western Australian Government challenged the validity of the Native Title Act in the High Court. At the same time communities from Western Australia, such as the Worora and Martu peoples, challenged the validity of that state’s legislation.

The High Court heard all three cases together, and declared the Western Australian legislation invalid under section 109 of the Constitution because it was inconsistent with both the Native Title Act and the Racial Discrimination Act. This case reinforced the jurisdiction of the Commonwealth Parliament over native title matters.

By 1995, the legal principle of native title was clearly established in Australia. *Terra nullius* no longer had application in Australian law, and a process for determining Aboriginal and Torres Strait Islander peoples’ land rights claims was in operation. If a native title claim is contested by any other party, the Federal Court and the High Court have ultimate jurisdiction to determine the matter. The Native Title Tribunal was established to help determine the validity of native title claims and to provide mediation services to help resolve disputes over native title. No state could introduce laws relating to land rights that were inconsistent with the Commonwealth Native Title Act.

## 4.6 ACTIVITIES

1. There are other issues relating to Australia's treatment of Aboriginal and Torres Strait Islander peoples. Using internet resources, explain what is meant by the term 'Stolen Generations' and describe how Australia has responded to this issue to date (see also topic 22).  
**HASS skills: Analysing**  
**Civics and citizenship concept: Justice**
2. The Mabo Case was followed eight years later by the Wik Case. Using internet resources, research the Wik Case and provide a brief summary of the case and its link to the Mabo Case.  
**Civics and citizenship concept: Justice**
3. One country that has approached its relationship with the Indigenous population differently is New Zealand. Research and provide a summary of the Treaty of Waitangi.  
**Civics and citizenship concepts: Justice, Rights and responsibilities**
4. Research the UN and racial discrimination to help you complete the following:
  - a. How does the United Nations define racial discrimination?
  - b. Select two rights found in Article 5 of the International Convention on the Elimination of All Forms of Racial Discrimination, and explain what they mean.
  - c. Read Article 7 of the Convention and explain whether you believe Australia has complied with this article. Give reasons for your answer.
  - d. If your answer to part (c) was 'No', outline what Australia could do to comply with the conditions set out in Article 7.**HASS skills: Analysing**  
**Civics and citizenship concepts: Justice, Rights and responsibilities**

## 4.6 EXERCISE

To answer questions online and to receive immediate feedback and **sample responses** for every question, go to your learnON title at [www.jacplus.com.au](http://www.jacplus.com.au).

### Learning pathways

#### LEVEL 1

Questions  
1, 2, 3, 7

#### LEVEL 2

Questions  
5, 6, 8

#### LEVEL 3

Questions  
4, 9, 10

## Check your understanding

1. What is meant by the term 'terra nullius'?
2. On what grounds did Captain Cook claim Australia as a British colony?
3. Explain what is meant by the term 'native title'.
4. What were the principles behind the decision of the High Court in the Mabo case?
5. Explain in your own words why you think it took so long for a case like the Mabo case to come to the High Court.

## Apply your understanding

6. What influence do you believe the Universal Declaration of Human Rights had on the decision to grant native title? Explain your answer.
7. Explain what is meant by the term 'racial discrimination'.
8. The decision in the Mabo case has been challenged in the courts. Why do you think this decision may have been challenged?
9. Decisions by the High Court in cases like Mabo often lead to the parliament making laws. Explain why you think this may occur.
10. In 2019, the movement for a constitutional change to formally recognise Aboriginal and Torres Strait Islander peoples gained momentum. Suggest how a constitutional change in this area might assist social cohesion.

For sample responses to every question, go to [www.jacplus.com.au](http://www.jacplus.com.au).



## 4.7 Thinking Big research project— Create a bill of rights

### 4.7.1 Scenario

In June 2019 the Australian Federal Police raided the home of a journalist and the offices of the Australian Broadcasting Corporation (ABC). They were searching for information regarding leaks that may have been related to a series of stories broadcast in 2017 that became known as the ‘Afghan Files’. These stories related to operations conducted by Australia’s elite special forces that resulted in alleged incidents of unarmed civilians being killed.

These Federal Police raids have renewed calls for Australia to consider the creation of an Australian bill of rights to protect freedom of speech, especially for journalists.



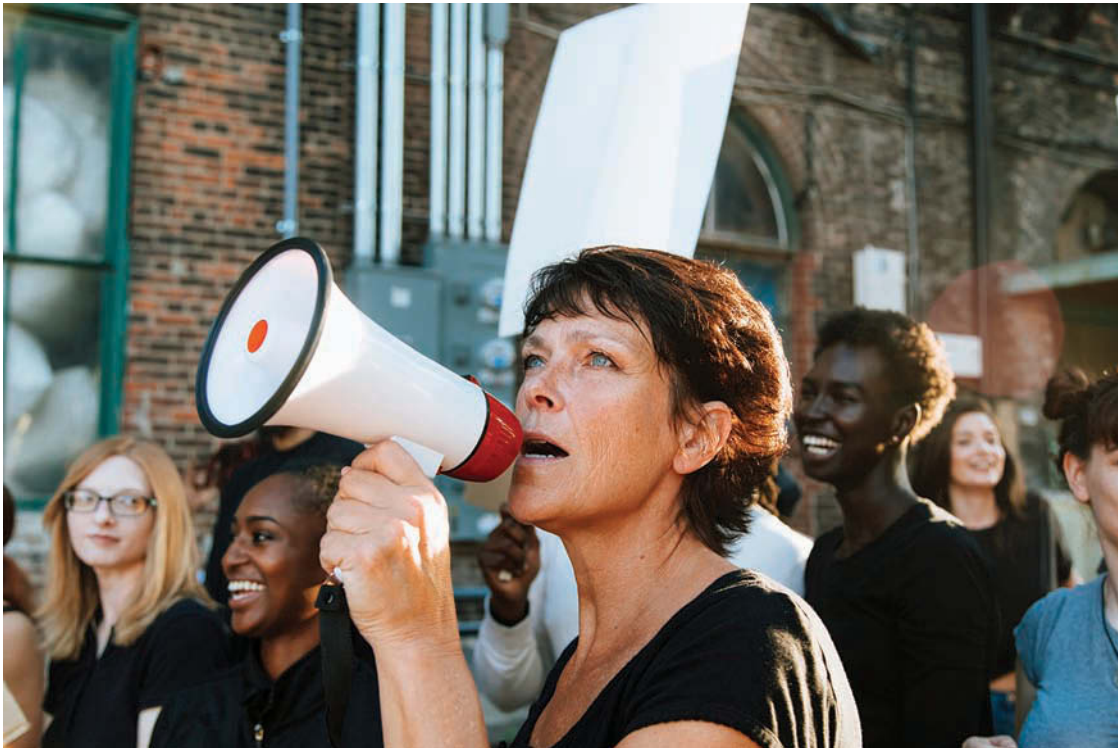
### 4.7.2 Task

Your task is to research and prepare a report on another country’s bill of rights and then draft one for Australia. Then, as a class, work together to combine ideas into one cohesive bill that the whole class agrees upon.

### 4.7.3 Process

- Open the ProjectsPLUS application in the Resources for this topic. Click on the **Start new project** button to enter the project due date and set up your project group if you wish to. You can work independently or with a partner, which will allow you to swap ideas and share responsibility for the project. Save your settings and the project will be launched.
- Select a country that has a bill of rights, then conduct research into the elements included in the bill. Navigate to the **Research forum**, where you will find starter topics loaded to guide your research. You can add further topics to the Research forum if you wish. In the **Media centre** you will find an assessment rubric and some weblinks that will provide a starting point for your research.

- Make notes of your research and remember to record details of your sources so you can create a bibliography to include in your report. Add your research notes and source details to the relevant topic pages in the Research forum. When you have completed your research, you can print out the **Research report** in the Research forum to easily view all the information you have gathered, if you wish.
- Prepare a brief report detailing the history of the bill of rights and what it contains.
- Using the information you gained about your selected country, draft a bill of rights for Australia. For each element in your draft bill, provide a brief explanation as to why you think it should be included.
- Submit your report and proposed bill to your teacher (along with your bibliography), and/or present it to the class.
- Once all groups have submitted or presented their proposals, the class should discuss the various proposals and draft a bill of rights that all the class agrees on, which Australia could adopt. This could then be created in poster form for display in the classroom.



## on Resources



**ProjectsPLUS** Thinking Big research project — Create a bill of rights (pro-0222)

## 4.8 Review

### 4.8.1 Key knowledge summary

#### 4.2 Resolving disputes between state and federal governments

- One role of the government is to establish a system of dispute resolution bodies to deal with conflict.
- In Australia the High Court is the highest court, charged with resolving the most serious disputes that arise.

#### 4.3 Interpreting the constitution

- The High Court has been given the jurisdiction to allow it to:
  - hear appeals from decisions in cases heard in state and territory Supreme Courts
  - settle disputes between the states
  - interpret the Constitution to determine law-making power
  - interpret the Constitution to infer rights for the citizens.
- The High Court guards our Constitution and our rights, and provides a check on the government.

#### 4.4 International law

- The continuing development of technology has necessitated the need for a global body to oversee and attempt to regulate the interactions between countries.
- The aim of such a global body is to minimise the incidence of conflict among peoples and nations.
- The International Court of Justice is the primary judicial branch of the United Nations that settles legal disputes submitted to it by states (member countries of the United Nations).

#### 4.5 Applying international treaties

- Treaties play an important part in establishing rules for behaviour in a range of areas:
  - economics and trade
  - labour laws
  - military and defence
  - economic development
  - human rights.
- The High Court resolves disputes arising from international treaties.
- As a member of the global community, Australia has played a role in the development of global laws and treaties, and the bodies responsible for drafting and enforcing these rules.
- Australia recognises its obligations at home and applies the terms of international treaties and agreements at home to improve the lives of its citizens.

#### 4.6 International law and Indigenous Australians

- Australia's role as a signatory to the Universal Declaration of Human Rights led to the legal principle of native title being established.

### 4.8.2 Key terms

**defamation** a civil wrong involving a written or verbal communication that lowers a person's reputation in the community

**infer** to form a conclusion based on evidence

**precedent** an action or decision on which later actions or decisions might be based; a law made by a superior court that must be applied by lower courts in future cases with the same or similar facts

**ratify** to formally consent to and agree to be bound by a treaty, contract or agreement

**reparations** payment of money or materials by a nation defeated in war, as compensation for damage caused

**rights** those things that a person is entitled to by virtue of being a member of society

**tariffs** taxes imposed on imported goods and services to make them more expensive

**tenure** a system by which particular individuals or groups are given a legally recognised right to occupy a defined area of land

**terra nullius** ('land belonging to no-one') in Australia, the legal idea that since no-one was 'using' the land when the first Europeans arrived, it could be claimed by the British Crown

**trade** the activity of buying, selling or exchanging goods and services between producers and consumers and/ or countries

**treaty** an agreement between two or more sovereign states (countries) to undertake a particular course of action. It usually involves matters such as human rights, the environment or trade.

**ultra vires** acting beyond the power of the law maker. It usually refers to situations where parliaments pass a law that is outside their area of authority.

### 4.8.3 Reflection

Complete the following to reflect on your learning.

Revisit the inquiry question posed in the Overview:

**Do we really need laws, high courts and treaties? Can't everyone just get along without them?**

1. Now that you have completed this topic, what is your view on the question? Discuss with a partner. Has your learning in this topic changed your view? If so, how?
2. Write a paragraph in response to the inquiry question outlining your views.



#### Resources



##### eWorkbook

Customisable worksheets for this topic (ewbk-6033)  
Reflection (ewbk-6032)  
Crossword (ewbk-6031)  
Student Learning Matrix (ewbk-6028)



##### Interactivity

Maintaining justice for a cohesive society crossword (int-8241)

## 4.8 Review exercise

### Multiple choice

1. What did Australia's Constitution establish Australia as?
  - A. A monarchy
  - B. A Commonwealth
  - C. A republic
  - D. A constitutional democracy
2. What are the law-making powers which are not listed in the Constitution known as?
  - A. Exclusive powers
  - B. Concurrent powers
  - C. Specific powers
  - D. Residual powers
3. The Constitution established how many 'heads of power'?
  - A. 41
  - B. 40
  - C. 39
  - D. 38



4. If Commonwealth and state laws conflict, which section of the Constitution resolves this conflict?
  - A. Section 109
  - B. Section 128
  - C. Section 75
  - D. Section 24
5. What is a law made by a superior court called?
  - A. Statute
  - B. Legislation
  - C. Precedent
  - D. By-law
6. When both state and federal parliaments are free to make laws in the same area, what is the right to do so known as?
  - A. *Ultra vires*
  - B. A concurrent power
  - C. A referendum
  - D. An exclusive power
7. Who has the jurisdiction to interpret the Australian Constitution?
  - A. Commonwealth Parliament
  - B. Governor-general
  - C. Senate
  - D. High Court
8. When was the United Nations officially formed?
  - A. 1929
  - B. 1939
  - C. 1942
  - D. 1945
9. Trade agreements signed by Australia are the responsibility of which of the following?
  - A. World Trade Organization
  - B. General Agreement on Tariffs and Trade
  - C. International Labour Organization
  - D. Department of Foreign Affairs and Trade
10. Encouraging fair and free trade between countries is the work of which of the following?
  - A. UNESCO and the ILO
  - B. UNESCO and the WTO
  - C. The ILO and the WTO
  - D. GATT and the WTO

### Short answer

11. This question requires you to reflect on what child labour means and the impact it can have on an individual child, a generation and a society as a whole.  
Prepare a short written response about child labour. In it you need to address the following.
  - a. Define child labour.
  - b. Outline your experience of working as a child. (What jobs do you do at home? Do you get pocket money and what do you do to earn it? Do you have a part-time job? If so, what do you do, who do you work for and what are your working conditions?)
  - c. Explain the negative impact of child labour on children and society.
  - d. Discuss whether children should be allowed to work and the circumstances in which this should be allowed.

This is a summary of the digital resources you will find online for topic 4 to help support your learning and deepen your understanding. When you see these icons next to an image or paragraph, go to learnON to access video eLessons, interactivities, weblinks and other support material for this topic.

## 4.1 Overview



### Video eLesson

- Living in a cohesive society (eles-2378)

## 4.2 Resolving disputes between state and federal governments



### eWorkbook

- Government powers (ewbk-6029)

## 4.4 International law



### Weblinks

- Whaling
- UN peacekeeping missions
- UN peacekeeping mission video

## 4.5 Applying international treaties



### Video eLessons

- Aboriginal demonstration (eles-2428)
- Tassie's Franklin River — 20 years on (eles-0636)



### Weblink

- Rights of the child

## 4.6 International law and Indigenous Australians



### eWorkbook

- The Mabo decision (ewbk-6030)

## 4.7 Thinking Big research project — Create a bill of rights



### ProjectsPLUS

- Thinking Big research project — Create a bill of rights (pro-0222)

## 4.8 Review



### eWorkbook

- Reflection (ewbk-6032)
- Crossword (ewbk-6031)
- Student Learning Matrix (ewbk-6028)



### Interactivity

- Maintaining justice for a cohesive society crossword (int-8241)

To access these online resources, log on to [www.jacplus.com.au](http://www.jacplus.com.au).